

**FIRST AMENDMENT OF
PURCHASE AND SALE CONTRACT**

THIS FIRST AMENDMENT OF PURCHASE AND SALE CONTRACT (this “Amendment”) is entered into as of the date of last signature below (the “Amendment Date”), by and between **LEXINGTON-FAYETTE URBAN COUNTY GOVERNMENT**, an urban county government of the Commonwealth of Kentucky (“Seller”) and **AMAZON.COM SERVICES LLC**, a Delaware limited liability company, and/or its assigns (“Purchaser”). The following recitals are a material part of this Amendment:

A. Purchaser and Seller entered into that certain Purchase and Sale Contract dated effective as of November 10, 2025, (the “Agreement”), pursuant to which Seller agreed to sell and Purchaser agreed to purchase certain real estate consisting of approximately 19.61 acres, together with all hereditaments and appurtenances belonging or appertaining thereto, and any Improvements, Permits, Plans, Additional Interests, Intangible Property, Personal Property, and Approved Service Contracts, located in the Fayette County, Kentucky, as more particularly described in the Agreement; and

B. Purchaser and Seller now desire to further amend the Agreement upon the terms and conditions set forth in this Amendment.

NOW, THEREFORE, in consideration of the foregoing, the mutual covenants contained in this Amendment and other good and valuable consideration, the receipt and legal sufficiency of which are hereby acknowledged, Seller and Purchaser each hereby agree that effective as of the full execution of this Amendment, the Agreement is hereby amended as follows:

1. **Defined Terms; Recitals.** Capitalized terms used, but not defined, in this Amendment shall have the same meaning ascribed to such terms in the Agreement. The recitals set forth above are hereby incorporated into and made a material part of this Amendment as if fully set forth herein.

2. **Extension of Inspection Period.** Seller and Purchaser hereby acknowledge that Purchaser has previously exercised each Extension pursuant to Section 5(h) of the Agreement and the Inspection Period, as extended, currently expires June 8, 2026 at 11:59 p.m. Pacific Time. Notwithstanding anything in the Agreement to the contrary, Purchaser shall have the right, in Purchaser’s sole and absolute discretion, to further extend the Inspection Period for one (1) additional period of forty-five (45) days (the “Additional Extension”) by (i) providing written notice to Seller at any time on or prior to June 8, 2026, time being of the essence only with respect to Purchaser’s delivery of such notice, and (ii) depositing, or causing to be deposited, with the Title Company the additional sum of Fifty Thousand and 00/100 Dollars (\$50,000.00) for such Extension (the “Additional Extension Fee”) for the Additional Extension at any time on or prior to June 8, 2026. The Additional Extension Fee shall then be released from the Title Company to the Escrow Holder within three (3) business days, who shall hold said funds in a separate, restricted, and non-interest-bearing fund pending Closing. The Additional Extension Fee, and all other Extension Fees, will constitute additional Earnest Money and will be applied against the Purchase Price at Closing, but will be non-refundable to Purchaser (except in the event of a default by Seller). In the event of any conflict between this Section 2 and the Agreement, this Section 2 shall control.

3. **No Additional Consideration for Extension.** Seller acknowledges and agrees that, except for the Additional Extension Fee expressly described in Section 2 above, Purchaser shall not be required to pay, incur, commit to, reimburse, or otherwise be responsible for any additional amount, cost, fee, expenditure, improvement, investment, contribution, or other financial obligation as consideration for, or as a condition to, the Additional Extension or this Amendment. No term or condition of this Amendment



shall be construed to impose upon Purchaser any additional spend obligation or monetary commitment not expressly set forth in the Agreement, as amended hereby.

4. **Ratification.** Except as expressly modified or amended by this Amendment, all terms, conditions, and provisions of the Agreement, are hereby ratified and confirmed and shall remain in full force and effect; provided, however, that any other provision of the Agreement shall be deemed modified if and as necessary to give practical effect to the provisions of this Amendment. To the extent that the terms and provisions of this Amendment conflict with the Agreement, the terms and provisions of this Amendment shall control.

5. **Counterparts.** This Amendment may be executed in any number of copies and counterparts, each of which will be deemed an original and all of which counterparts together will constitute one agreement with the same effect as if the parties had signed the same signature page. Counterparts may be delivered via facsimile, electronic mail (including pdf or any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docuSign.com) or other transmission method and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes.

[Signature Page to Follow]

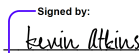


IN WITNESS WHEREOF, this Amendment has been executed by Seller and Purchaser to be effective as of the Amendment Date.

SELLER:

**LEXINGTON-FAYETTE URBAN COUNTY
GOVERNMENT,**

an urban county government of the Commonwealth
of Kentucky

By: _____
Name: Kevin Atkins
Its: Chief Development Officer
Date: May 24, 2026



PURCHASER:

AMAZON.COM SERVICES LLC,
a Delaware limited liability company

Signed by:
Trace Blethen
By: _____
Name: F51CFB0C6FC04B2 Trace Blethen _____
Its: Authorized Signatory _____
Date: May 22, 2026 _____

4915-7733-7261, v. 1

